

Content guidelines

How to write for our product experience

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- Learn how to write UI elements (like buttons or tooltips) under [components](#)
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- Find detailed advice on our brand strategy and voice in our [Writer's Guide](#)
- See how we're positioning Upwork's offerings in the [Product Marketing Message Map](#)

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Legal guidance

As we build Upwork, it's important that we make sure we're following the law and don't accidentally get ourselves into trouble. Our Legal and Policy teams have put these guidelines together to help you do that.

For a quick reference guide to when to check in with Legal (and when it's not needed), take a look through our "When to get guidance" section below. For a quick primer on keywords to remove from copy, check out terms to [avoid](#) or [limit](#).

Questions? Just ask your Legal contact or in our slack channel #ask-legal.

When to get guidance

Not every asset requires Legal review. These guidelines provide guidance on when to submit your asset for Legal review versus when teams can feel confident moving forward without the Legal team's review.

As a starting point, so long as our [Legal Principles](#) are followed, Legal generally does not need to review:

- Routine emails, such as Marketing Emails encouraging new and current users to use the platform, or describing existing products and features (these should only be sent to users who have not opted-out of marketing emails);
- How-to articles, that explain existing features on the platform;
- Routine Customer Support communications, i.e. those advising users how to flag or report another user or other existing processes.

So what type of assets do require Legal Review? Use this checklist to determine when you should submit your asset for Legal review. If your answer to any question is "No", skip along to the next question. But be sure to go through each question - even if an earlier question requires Legal Review, a later question may also require Legal Review and ask you to provide additional information in your Request:

Language Usage/Content

1. **Terms to Be Avoided:** Are you using any terminology or concept listed [here](#) as “avoid”?
 - a. If no -> proceed to next question
 - b. If yes -> submit for Legal review & provide context for why you believe an exception is necessary
2. **Terms to Limit:** Are you using any terminology or concept listed [here](#) as “limit”?
 - a. If no or only using 1-2 times -> proceed to next question
 - b. If using 3+ times -> submit for Legal review & provide context for why you believe an exception is necessary
3. **Upwork Doing the Work:** Does your language indicate that Upwork is the one actually [doing the work](#) contracted for by the user, or involved in any way in the work/deliverable to the client or freelancer, as opposed to the user doing the work and/or providing the deliverable?
 - a. If no -> proceed to next question
 - b. If yes -> submit for Legal review & provide context for why you believe an exception is necessary
4. **Upwork as Employer:** Does your language indicate or imply that [Upwork employs the freelancer](#) (i.e., “Upwork’s freelancers” or “Upwork Talent”)?
 - a. If no -> proceed to next question
 - b. If yes -> submit for Legal review & provide context for why you believe an exception is necessary
5. **Directing Freelancers:** Does your language indicate that a user should or must do something, act in a certain way or otherwise [direct a user](#) to conduct their business or perform their work in a particular manner?
 - a. If no -> proceed to next question
 - b. If yes -> submit for Legal review & provide context for why you believe an exception is necessary
6. **Equal Footing:** Does your language imply or indicate that clients dictate the relationship between clients and freelancers instead of the parties being on [equal footing](#)?
 - a. If no -> proceed to next question
 - b. If yes -> submit for Legal review & provide context for why you believe an exception is necessary

7. **Promises & Guarantees:** Are you using language that could be construed as making a [promise](#), guarantee, or establishing an expectation?
- If no -> proceed to next question
 - If yes -> submit for Legal review & provide context for why a promise is necessary and reasonable
8. **Overselling:** Are you using [superlative or comparative language](#), or language that could be considered “puffery”? (Examples: “Upwork is the greatest talent platform;” “Find the best talent;” etc).
- If no -> proceed to next question
 - If yes -> include your proof/data points & submit for Legal review
9. **Relying on Data:** Are you using data? (Examples: “40% of talent...”; “57% more likely...”)
- If no -> proceed to next question
 - If yes -> Has the data been previously approved + is it no more than 2 years old + is still reasonably accurate ?
 - If yes -> proceed to next question
 - If no (i.e. new data, unsure of accuracy, or older than 2 years) -> submit for Legal review and provide the rationale for the statement + underlying data
10. **Not Our IP:** Does the content use or play off of others’ IP (i.e. music, song, art etc.)?
- If no -> proceed to next question
 - If yes -> submit for Legal review
 - Please specify whether you have [permission](#) to use the IP in your request and how the permission was obtained.
11. **User or Third-Party Content:** Does the content include User testimonials or other User or third-party provided [content](#) (i.e. user profiles available only in the logged-in view, user messages, any other user-generated content or content generated outside of our platform)?
- If no -> go to next question
 - If yes -> submit for Legal review
 - Please specify whether you have a release from the User and how the release was obtained.

12. **Upwork's IP:** Does the content include any [Upwork Intellectual Property](#), especially any Upwork trademarks?
- If no -> go to next question
 - If yes -> please review and comply with the [Trademark section](#) below, and submit for Legal review if you have any questions.

Subject Matter

13. **Marketing to Specific Populations:** Are you attempting to target a particular group or population, such as for a heritage or identity month?
- If no -> proceed to next question
 - If yes -> please review and comply with the [population-focused marketing pointers](#) below, submit for Legal review with appropriate context on the campaign.
14. **Generative AI:** Does your copy or product involve or relate to [Artificial Intelligence](#)?
- If no -> proceed to next question
 - If yes -> please review and comply with the [AI concerns section](#) below, and submit for Legal review with appropriate context on the AI feature.
15. **Legal or Tax Advice:** Does the copy discuss anything close to [legal or tax advice](#)? (Examples: Copy that discusses how to classify freelancer talent, how to avoid liability in a particular category or situation, best practices for tax compliance etc.)
- If no -> proceed to next question
 - If yes -> please review the [legal advice section](#) below, and submit for Legal review with explanation why providing this information is necessary or desirable and a proposed disclaimer. Note: Upwork cannot provide legal advice to users. To the extent it cannot be justified, removing it would be preferable and can help you avoid Legal review.
16. **New Product or Offering:** Is the copy for a new product, feature, test, service, or offering?
- If no -> proceed to next question
 - If yes -> submit for Legal review. Make sure the draft copy already complies with these guidelines. Note: as a general matter, Legal should be looped into the new Product concept before copy is drafted. If this has

not happened, provide context for the new product, service or offering in the submission.

17. **Updates to Algorithms/Rankings:** Does your writing involve updates to our algorithms or rankings process?
- a. If no -> proceed to next question
 - b. If yes -> submit for Legal review with explanation of underlying updates to algorithms or rankings. Note: as a general matter, Legal should be looped into algorithm and rankings updates before copy is drafted.
18. **New Pricing/Escrow/Compliance Language:** Does it discuss updates or changes to our pricing or escrow or payments, or describe our compliance programs or standards in a way that we have not before?
- a. If no -> proceed to next question
 - b. If yes -> submit for Legal review
19. **Collection and Use of Data:** Are you implementing a new data collection tool or writing content that relates to Upwork's collection and use of user data?
- a. If no -> proceed to next question
 - b. If yes -> Make sure you review and comply with our [Data Handling Principles](#) and then submit for Legal review.
20. **Sharing User Data:** Are you sharing any personal/user data of talent or clients, even in the aggregate, beyond a previously approved data set or to a new audience?
- a. If no -> does not need Legal review, unless required by a previous question
 - b. If yes -> submit for Legal review

How to get guidance

Make sure to leave time in your roadmap for Legal review, particularly when developing a new feature or when any of the circumstances in "When to get guidance" apply.

Please submit your review request via [Hive](#); we no longer accept routine review requests via Slack or email. The Legal team needs to get requests 5 business days in advance, although longer is always better.

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How Legal approaches copy

The number one thing you should know when working with Legal is that we want you and Upwork to be successful while avoiding unnecessary risk.

The Legal team is flexible, but we aren't copywriters. There is almost never only one way to say something—but there are definitely [many ways we can't say something](#). In cases where we think the writing is not compliant, we may give you alternative ideas. If you don't like an idea, we won't be offended—let's work together to find the best

solution. If we can't agree on something, that's when we sometimes want to add a little legal disclaimer; and no one loves that outcome. So please work with us!

Legal principles for writing about Upwork

When the Legal team shares its view of our work marketplace with you, it's typically to help keep Upwork out of trouble. Here are some important concepts to keep in mind as you write about and work on the entire Upwork experience.

1. Upwork is the world's work marketplace, not an employer or staffing agency.

Clients and Talent use the Upwork platform with Upwork's support, but Upwork does not do the work.

From a legal perspective, we want it to be clear that the clients and talent are the actors on our site, and we are the support. In most cases, the client or the freelancer should be the actor in a sentence. We help, assist, and simplify the process of connecting with great talent or great clients so they can get work done—but we don't vet, verify or provide projects or talent, nor do we do the work. That means we should almost always be framed as the helper, not the primary actor.

- For example, we can say “our platform will help you find talent,” but we wouldn't say that “Upwork finds the right talent for you.”
- Likewise, we could let talent know that “the more great projects you complete, the more your profile rises in the marketplace,” but we wouldn't tell them that “the more great projects you complete, the more we send you projects.”

Freelancers do not work for Upwork.

We **do NOT employ the talent** on our marketplace—they don't work for us!¹ Also, we don't work for the clients on Upwork. Talent are our customers—they pay us, and in exchange we provide them services and resources to help them grow their businesses. We are not a part of freelancer-client relationships—we don't guarantee a freelancer's going to be successful or that the client will be happy with the freelancer's work product. We are not a staffing agency. We do not decide which talent work with which clients, and vice versa. We should make sure to describe talent accordingly, i.e. they are “freelancers on Upwork” or “talent on Upwork” not “Upwork Freelancers” or “Upwork Talent”.

¹ Except for talent engaged directly by Upwork to provide work or services directly for Upwork.

We can advise, but do not direct or control.

A freelancer's business relationships and decisions about their businesses are theirs to make, not ours, so we should communicate our recommendations as optional suggestions, not mandates. Talent decide when, where, and with whom to work, and how much to charge. We should avoid saying talent *must* do something, should "always" do something, or using the command tense, e.g., "Call your mother." Instead, share common traits and practices that typically generate great outcomes for talent and build lasting relationships on our platform.

Talent and clients are on equal footing.

When talking about their relationship, make it clear that they should come to an agreement on all terms. The client doesn't "decide" how much a freelancer is paid, they make an offer and negotiate. Likewise, talent are open to accept or decline opportunities. Additionally all users need to know how to use Upwork, so take care to consider both groups when writing tutorials or other guidance. Even if the feature is specific to one of the groups, you should consider how the other audience might read or interpret it.

How we describe talent on the platform matters. "Talent," and other alternatives, are preferred terms to "freelancer".

While the independent professionals who use Upwork to offer their services like the term "freelancer" because it's most reflective of the quality of their work, they also have mixed feelings about it and Clients sometimes see the terms as lacking in professionalism and gravity. And, from our perspective, other words are more closely aligned with the non-commodified work and long-term working relationships we strive to promote on our platform.

2. Data handling principles

Our customers rely on us to be trustworthy stewards of their data, and how we handle their data matters. To keep our customers' trust and avoid inadvertently violating data protection laws, Upwork follows these data handling principles:

- **We are proactive not reactive.** We design and implement the Upwork experience to avoid privacy risks before they happen; privacy isn't an add-on or afterthought.
 - **Do:** Proactively anticipate and answer user questions about privacy. As users navigate our site, they are thinking about the data they share with us, and how we use and protect it. We have an opportunity to show them

we are thinking about that too by proactively building answers into the user experience.

- **Users are in control of their privacy.** Wherever possible, we aim to make it easy for our users to make informed decisions around how we use and share their data.
 - **Do:** Give our users choices about their data by looking for ways to let them decide what data to share with us and others
- **We prioritize security from collection through destruction.** Our user experience considers security from the moment we collect data to the moment we securely destroy or delete it.
 - **Do:** Build in security from collection through destruction. Any data we collect, store, or share is kept as safe as possible from misuse, loss, or inadvertent corruption. Reach out to your information security partners (#ask-infosec on Slack) if you need to make decisions about how to collect, store, or share data securely.
 - **Don't:** Collect information you don't need because you think you might need it in the future.
 - **Don't:** Share data with people who don't need it, or share more data than necessary.
 - **Don't:** change in-product privacy settings or how broadly we share users' data with others without reaching out to your legal partners in privacy. If the privacy settings on any of our features change, we inform our users by updating our [Privacy Policy](#) and/or sending appropriate in-product or external communications with the affected users. By keeping Legal in the loop we can make sure to update our Privacy Policy, ToS, or notify users some other way. Reach out via the #ask-legal Slack channel for help with this, or any other questions
- **We are transparent about our privacy practices.** Our users and other stakeholders understand how data moves through our system and the options they have.
- **We respect user privacy, and it shows.** Our presentation to users should inspire confidence because it demonstrates that we take our users' privacy very seriously.

How to keep your writing compliant

No one knows better than you that the words we use matter. The Legal team has compiled a list of terms and phrases that you should avoid using to keep Upwork compliant and out of legal trouble. Check out the suggested alternatives to use instead. If you want to know more about why certain terms are off-limits, read the [details on restricted terms.](LINK).

Remember, if you are using any of the terms to avoid or limit, you must [contact the legal team](LINK).

1. Terms to avoid

What you need to know about word choice with a legal lens:

Terminology Best Practices		
	 Terms to Avoid	 Recommended Alternatives
Talent and Client relationship	admonish directions supervision audit discharge suspend coach fire suspension coaching instruct terminate control instructions termination counsel [manage](link to details) train demote monitor training demotion report to trainer discipline reprimand warn direct supervise warning	We've placed your account on a temporary hold closed your account collaborate with describe the work end the contract review and approve the work partner with set milestones reject the work check hours and/or that deadlines will be met work with
Payment	paycheck salary wages payment guarantee	charge more fee increase your rate payment rate [Hourly Payment Protection](LINK)

Escrow	deposit funds transfer funds	We hold funds in escrow until we release them to the other party based on the escrow instructions
Freelancer/Talent role and business	employee [staff/staffing](link to details) candidate applicant [career](Link to explanation) [people](link to details)]	business owner contractor expert freelancer independent professional professional pro professional on Upwork talent independent talent Independent business business
Freelancer onboarding	application apply directive guidelines handbook employment/work policies procedures protocol rules [tools](link to details]	submit bid/proposal submissions best practices contract industry standards profile proposal submit a proposal terms of service (for Upwork website)
Freelancer history or experience	evaluate evaluation review [performance](link to details) [resume/CV](link to details]	client satisfaction client success job success freelancer rating feedback successful projects/outcomes successful client relationships
User's actions	disintermediate disintermediation	circumvent circumvention
Upwork's role	intermediary [Upwork's/our talent/people/talent](link to details) [suggest/recommend talent](LINK)	website online marketplace freelancer and client work platform Enterprise Compliance marketplace talent choices talent to consider
Work	duties job description	contract deliverables

	job offer job title [role](link to details)	describe the work project description scope of work services work description
Type of work	at will on-call as needed ongoing employment position Indefinite staffing These terms are generally avoided, but are permissible when talking about Payroll and Full-Time offerings: Permanent exclusive full-time staff augmentation long-term	contracted hours working relationship retainer agreement in between projects undetermined end date larger project undetermined contract term Catalog project unspecified end date project unspecified contract term repeat client unsure of end date repeat contract alternative to staffing

2. Terms to limit or vary

Terms to limit or vary ! denotes Legal approval will be needed	Recommended Alternatives ** denotes a usage note
hire* get hired *please vary, but merely using "hire" will not require Legal review	engage contract with select the proposal award the job ** <i>even better - make the freelancer the active party to the action, e.g., "win a client", "win the contract" instead of "get hired"</i>
! job* in connection with "hire" or "apply" (e.g., avoid apply for a job, or hire for a job)	work project contract engagement ** <i>acceptable but not preferred</i> submit a proposal for a job accept a job
! recruit ! recruiter	find talent network networker source talent talent sourcer
! timesheets	track your own hours log your hours record your hours invoice your clients bill your clients
! pause contract ! "fire" freelancer	end the contract work when you want in between projects pause billing

! full-time in connection with “job” or “work” ! part-time	you can freelance full-time large project small project short project
! workday ! workweek	billing/invoicing/payment period billing/invoicing/payment cycle business day

3. Details on restricted terms

 Avoid	Terminology Insights	 Examples of Alternatives
Career	This is typically used to describe employment, whereas independent talent have businesses <i>Compromise: “Independent career,” but please limit</i>	business freelance business freelance career independent career - If you’re looking for a home where <i>your independent business</i> will thrive, we invite you to join us. - If you’re looking for a home where <i>you</i> will thrive... - If you’re looking for a home where <i>your career as an independent professional</i> will thrive...
Manage	Talent are independent. In other words, independent talent have control over their lives and work schedules because they manage themselves. Clients do not manage them. <i>Usage note: You can use “manage” to talk about a program, e.g., “manage your freelance program with Upwork”</i>	- Our Enterprise Suite is a powerful platform for hiring, partnering with, and scaling talent... - The Enterprise Suite platform lets you manage <i>your whole program</i> from a single centralized hub. - The Enterprise Suite platform lets you <i>see/track</i> all of them from a single centralized hub.
Our talent Our people Our talent	We should never imply that the independent talent who uses the Upwork platform works for Upwork. Talent who use the Upwork platform work for themselves and use the Upwork platform to grow their independent businesses.	- You will find that many of the <i>talent/talent</i> here have been in our community for more than 5 years... - You will find that many of the <i>talent on Upwork</i>... - You will find that many of the <i>professionals on Upwork</i>...
People [in reference to talent]	Using people to describe the talent on Upwork limits the scope of the marketplace. The talent on Upwork are agencies, independent professionals, corporations, and LLCs.	- You’ll be surprised at the kind of <i>talent</i> you will find on Upwork. - We can’t begin to express the gratitude we have for <i>our community</i>
Performance	Avoid referring to a freelancer’s past work as their performance. Instead, talk about a freelancer’s success, successful project outcomes, or something similar. Avoid the combinations like “performance and “monitor performance.”	- We’ll analyze your needs and use our powerful engine to find people that have the right <i>skills</i>, experience, and <i>work history</i>. - We’ll analyze your needs and use our powerful engine to find people that have the right skills and

	<i>Usage note: You can use performance in other contexts, like the performance of software or anything other than the above.</i>	experience and a <i>history of happy clients</i>.
Resume/ CV	Resumes/CVs commonly describe employment. It is better to use terms such as “profile” or “proposal” depending on the context.	• Clients on Upwork can view talent <i>profiles</i> that will introduce talent’s business, highlight their expertise... • Talent on Upwork can submit a <i>proposal</i> to clients on Upwork...
Role	"Role" is an employment term and signifies exclusivity, whereas independent professionals seek to work on projects or contracts and may work with whomever they would like	• Independent professionals can meet clients and <i>work on projects</i>... • Independent talent grow their businesses on Upwork working on <i>contracts</i> that appeal to them. • If you have a need for design <i>services</i>, find a freelancer on Upwork.
Staffing	Upwork is not a staffing company. Staffing agencies and the staffing industry are governed by very specific laws. <i>Usage note: We can say that we are an “alternative to staffing”</i>	• We are not a staffing agency, but clients can meet all of the needs they typically go to a staffing agency to meet. ◦ "We are better than staffing" — we have higher NPS, higher quality talent is on Upwork, speed to engage is shorter, and cost is lower. ◦ Clients can use Upwork as an alternative by re-thinking "roles" to be more IC-friendly, by engaging talent internationally, or by using Upwork Payroll • “Staffing” can only be used to describe services closely in connection with Upwork Payroll. ◦ E.g., if you say "use Upwork for your staffing needs", that needs to be about Upwork Payroll. Not just include a fine print caveat that Upwork Payroll is available.
Suggest or recommend a freelancer	We cannot say that Upwork is “recommending” or “suggesting” specific talent to clients. Upwork is not a provider or staffing vendor and we cannot guarantee the talent's capabilities.	• We can offer clients <i>choices</i> of talent to <i>consider</i> • We can show talent based on client behavior (like previous hires or search queries) as long as we clarify why we are showing this talent. • We can recommend or suggest <i>catalog projects</i> to clients, but we should take care when doing so. For example, if the client posts a job for a graphic designer, we can show them related catalog projects.
Tools	“Tools” has a specific meaning in employment law, and we need to be careful we don’t say we provide “tools” to talent to do their work. For example, we can’t provide a designer with a design tool, or a writer with Microsoft Word, or a CS agent with a phone line. Those are tools that are used to complete the work. It’s better to use resources, informational materials,	• Talent have access to many <i>resources</i> to run their freelance business on Upwork • Join this webinar for <i>information and tips</i> on running your business

4. Technical Stuff

UPWK. Since we are a publicly traded company, we have to be very deliberate about what financial information we share. Therefore, any new statistic that isn't already public needs to be run by our Investor Relations & Legal teams. Examples: Number of users that sign up, average price per contract, number of contracts, number or percentage of individuals on the platform Upwork uses for its own business (i.e., TIP workers).

Rate setting and price fixing. We don't, and never should, do anything that looks like we are setting the rates charged by talent. When we share market data to help customers make more informed decisions, we need to be clear that all we are doing is sharing market data.

Customer logos and photos. As a general matter, we need permission to use any customer or third-party photo, name, logo, music or art in our marketing materials. Some Enterprise customers have already given us permission. But in any instance where we do not already have explicit consent, reach out to Legal for advice on what you need to do to get permission in any specific case.

Population-focused marketing. While uplifting and focusing on particular populations in marketing can be great, there are certain do's and don'ts to keep in mind. **Don't** ask users for and **don't** track legally protected class information (e.g., race, religion, sexual-orientation, etc.). What you can **do** is ask targeted groups (e.g., top-rated talent, rising talent, etc.) if they would like to participate in population-focused campaigns, and provide a checklist of potential campaigns for them to opt-in to. You will also want to ask them to provide the reason(s) for their interest so you can appropriately determine eligibility for your campaign.

Coalitions, Associations, Group Acronyms. We must avoid using the names of any formal associated groups or acronyms that could be confused for these entities. Even if we make up a name (e.g., the "Future of Work Coalition") we need to check and ensure no such group actually exists that corresponds with that name. We also want to make sure no group actually exists with a different name, but that uses the same acronym as the made up group name (e.g. if there was a group called the "Free

Workers' Committee,” that wouldn't conflict with “Future of Work Coalition” but the acronym for the real group and the made up group would: “FWC”).

Tax & legal advice. We can't provide legal or tax advice to our users. But sometimes it might be important to give tips or pointers. If we need to do this, we need to include a disclaimer, such as:

Each state's laws are different, so be sure to consult a local attorney so they can explain your state's rules and regulations to you before making a decision.

This article does not address all tax issues for talent, and you should not rely on it as legal advice. We strongly encourage readers to seek tax advice based on their particular circumstances from an independent tax advisor.

Freelance writer Inamul Karim submitted this story, and it reflects his views and opinions. This article does not constitute the views or opinions of Upwork, nor does Upwork sponsor or endorse the views of the author.

5. Accuracy & Promises

Look, we get it. You all love Upwork. We do too—but we can't let that love lead to overpromising or overshadow the fine print. Accuracy is the word—don't oversell and don't make promises or guarantees.

For example, our payment protection program is a membership perk that has several requirements and exclusions—it is *not a payment guarantee*. We know, “we guarantee payment” sounds amazing—but it isn't accurate. In fact, “Hourly Payment Protection” requires talent to meet [eight separate criteria](#). If you really want to say “We protect your payments,” then you'll need to include “[See details](#)” as well.

Likewise, we can never promise that a client and freelancer are going to have a great outcome. There are just too many factors we don't have visibility into or any control over. That said, we can accurately talk about how successful *most* outcomes are on Upwork: “X% of clients would recommend Upwork to a friend.” (when based on actual evidence; though you may need to get approval from Investor Relations and Legal if the stat hasn't been disclosed before).

We also have to be careful when using comparative and superlative language (“better than,” “faster than,” “the best,” etc.). While consumers often recognize that this type of language is what is known as “puffery” and not necessarily a scientifically,

data-backed promise, it is always better if the statement is backed up by something. We do not want to overpromise. Are we saying that a new feature results in more profile views? Let's make sure we have some data backing that up and we are being clear about what is being compared.

Finally, we must be particularly cautious if we are ever comparing Upwork to its competitors. Such statements should be particularly fact-based if used as the risk of repercussions from inaccurate statements is much higher than it would be when just comparing new and old features of the Upwork platform.

6. Trademark Principles

A trademark is a word or string of words registered or otherwise established by use to represent a particular company or product. One way to establish trademark protection is to register the mark, another way is by first developing "secondary meaning" in a phrase, which essentially means that a company develops a new, distinct meaning to a word or phrase that may already have meaning in common language by using it in commercial use to the point that consumers associate the phrase with that company. Famous examples include "Apple" as a company name and "Just Do It" (Nike) or "I'm Lovin' It" (McDonald's) as company mottos. A trademark holder can enforce their mark against other companies who may try to market their services through use of the mark (i.e. if Wendy's tried to use "I'm Lovin' It").

Upwork has established trademarks over "Upwork," "Up We Go," "Headroom," "Work Without Limits," "Work Differently," "Talent Cloud," "Private Talent Cloud," "Elance," "Elancer," and "oDesk". We are also claiming trademark rights over other marks, including "This Is How We Work Now," and "Upwork It." In order to preserve these trademarks, we need to adhere to the following principles for use and flexible use of Upwork's marks. ...

The following pointers apply to the use of all trademarks at Upwork:

- Use the ® symbol with the first use in an asset of a registered trademark, such as Upwork.
- Use the ™ symbol for those where we are seeking trademark status but have not yet obtained it through registration, such as TIHWWN, Project Catalog, and Virtual Talent Bench.
- Use consistent font or sentence structure (such as title case) across usage for the same mark where possible in assets.

- If using the mark as a sentence (i.e. “This is how we work now.”), always put the TM at the end, even if it’s not the first usage in the asset.

Please consult the following important guidelines when using variations of the TIHWWN brand mark:

- ☐ If your asset uses “This is how...now”, with different wording than “we work” in the middle, we need to include a reference to the full TIHWWN phrasing in close proximity in the same asset. You can either:
 - ☐ Write out “This is how we work nowTM” and then mock it up by striking through the words you’re replacing and adding them in subscript on top. So for Example 3 above, we would write, “This is how we work nowTM”, then cross out “work” and add in subscript above it “hire full time”.
 - ☐ Use your variation first and later in the asset (often right afterwards) add, “This is how we work nowTM.” So, to comply with this guideline, Example 1 would become: “This is how we CEO now. This is how we work nowTM.”
- ☐ If your asset only uses 3 or less words from TIHWWN, such as “This is how” or “how ___ works,” with no other reference to or words from TIHWWN or replacement of other TIHWWN words, it is approved to move forward without a requirement for a specific reference to TIHWWN in the same asset (but it doesn’t hurt to add it!). Here is an example that mostly is fine based on this guideline, but due to the last usage, “how the Fortune 500 works now,” we would need to end with “This is how we work nowTM”:

~50% of Fortune 500 companies are Upwork clients
 Upwork’s global talent pool is how businesses stay flexible now,
 how strategies shift on command now, and how the Fortune 500
 works now. Hire in days.

- ☐ If your asset is purely for internal purposes and will not be used externally for any purpose at any time, we have more flexibility and do not have to follow these guidelines as strictly as any use or asset for external purposes.

By following these guidelines in our brand marketing, we can both protect our brand while driving it forward.

7. AI Concerns

Generative AI tools have already begun to revolutionize the tech and business world, but with these tools come a number of legal concerns:

Content Creation

If Upwork is responsible for the content, Upwork could be liable. For that reason, we must always be sure that, when describing Gen AI tools, we describe them as just that—tools—that supplement and support the User’s own work, but do not replace it.

So, in the example of a Gen AI tool that helps draft a proposal for a User, it is important that we don’t describe the tool as drafting the proposal for the user: “Provide some basic information and this tool will do the rest, leaving you with a ready-to-send proposal.” Instead, the Gen AI tool should always be a support and should be described as such: “Get a start on your proposal with some tips from this tool.”

Intellectual Property Issues

IP ownership has been one of the major concerns associated with AI tools. The concerns are two-fold:

1. Whether the AI tools have or need rights to the content on which they are trained
2. Whether and under what circumstances end-users can claim IP rights over content generated by genAI tools

Our Terms of Service state that users are responsible for ensuring they own any IP rights to content they post or otherwise share through Upwork, including work-product. This is another reason users must retain control over all their content on Upwork. All Product features must ensure that Users:

- Maintain control over the content
- Maintain control over both inputs and outputs used in GenAI tools

Bias Concerns

If an AI tool has been trained on biased/discriminatory content, the entity responsible for the content could be liable for any discriminatory violations. This again underlines the importance of maintaining user control over the ultimate content. It also means

that we need to be careful and thoughtful when developing AI tools to ensure that they are not incorporating any biases, including implicit ones.

Classification Concerns

While AI tools can be useful in helping users perform their work, we must be careful to ensure that providing third-party AI tools to Users does not make freelancers who use the Upwork platform appear to be employees. To that end, Upwork's own AI tools cannot be mandatory or direct user's work too much. Independent contractors like the talent on our platform make their own business decisions, including the tools they will use to do their work.

END